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CASE #	CASE NAME	HEARING NAME
CVPS2104070	868 ANDREAS CANYON DR., LLC VS PINKERTON	MOTION TO ENFORCE SETTLEMENT AGREEMENT AND RELEASE BY 868 ANDREAS CANYON DR., LLC, 868 A CANYON, LLC

Tentative Ruling: Code of Civil Procedure section 664.6 provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., §664.6.) The court’s decision to adopt a settlement as a judgment under section 664.6 is not mandatory as the statute states that a court “may enter judgment pursuant to the terms of the settlement...” (*In re Jason E.* (1997) 53 Cal.App.4th 1540, 1546.) Although a motion for enforcement of a settlement filed under section 664.6 is not an exclusive means to enforce an agreement, section 664.6 provides for an expeditious procedure intended to “benefit not only parties but also the justice system, relieving it of the burden of more time consuming and expensive processes. [Citation.]” (*In re Marriage of Woolsey* (2013) 220 Cal.App.4th 881, 898.)

“A trial court, when ruling on a section 664.6 motion, acts as a trier of fact.” (*Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.) The court “acting upon a motion under section 664.6 may determine the motion upon declarations alone” or, in the trial judge’s sound discretion, may receive oral testimony in making a determination on the motion. (*Ibid.*; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565.)

Here, Plaintiff has not demonstrated that a fully executed settlement agreement exists. A copy of the finalized version of the settlement agreement, which all parties have purportedly agreed to, was not placed into evidence before the court. Although it is true “the lack of a party’s signature does not make a fully executed contract unenforceable,” the moving party must demonstrate that a binding settlement agreement was entered by all parties agreeing to its material terms. (*Performance Plastering v. Richmond American Homes of California, Inc.* (2007) 153 Cal.App.4th 659.) Although there seems to be no dispute over the material terms or the parties’ respective obligations under the settlement agreement, Plaintiff has not shown that the obligations for payment have yet been triggered.

Additionally, counsel for Cross-Defendant Vantage Plaster and Drywall, Inc. indicated that the settlement check had been delivered to Plaintiff’s counsel on 6.19.26. (Vantage Opposition 2:20-24.) Counsel for Cross-Defendant Kermit Larby Air Conditioning and Sheet Metal, Inc. anticipated that their settlement funds would be issued by July 10, 2026. It is not known at this time if that has been completed. (Kermit Opposition 2:23-24.) Counsel for Cross-Defendant Desert Mirage Pools and Spas stated they were awaiting the signatures of Defendants No Fault and Milo Pinkerton for Desert’s insurer to issue payment and after having received them, payment should be made prior to the hearing date of July 20, 2026. (Desert Opposition 2:13-25.) Lastly, Defendants Pinkerton and No Fault LLC were dismissed by Plaintiff on 7.10.26.

Motion to Enforce Settlement Agreement is DENIED.

OSC re dismissal after conditional settlement continued to 12.21.26.